



2018

HIGHER
SCHOOL
CERTIFICATE
EXAMINATION (TRIAL)

Legal Studies

General Instructions

- Reading time – 5 minutes
- Working time – 3 hours
- Write using black pen
- Write your student number/ name on every page

Total marks: 100

Section I – 20 marks (pages 2–6)

- Attempt Questions 1–20
- Allow about 30 minutes for this section

Section II – 30 marks (pages 7–12)

This section has two parts, Part A and Part B

- Allow about 1 hour for this section

Part A – 15 marks

- Attempt Questions 21–23

Part B – 15 marks

- Attempt Question 24

Section III – 50 marks (pages 13–16)

- Attempt TWO questions from Questions 25–31, each from a different Option
- Allow about 1 hour and 30 minutes for this section

Section I

20 marks

Attempt Questions 1-20

Allow about 30 minutes for this section

Use the multiple-choice answer sheet provided for Questions 1-20

1 Which of the following would be a complete defence to a crime?

- (A) Duress, mental illness, self defence
- (B) Consent, mental illness, self defence
- (C) Insanity, provocation, consent
- (D) Self defence, mistake, insanity

2 Who has the burden of proof in a Local Court?

- (A) Magistrate
- (B) Director of Public Prosecutions
- (C) Police prosecutor
- (D) Public Defender

3 Which of the following would be a mitigating factor during sentencing?

- (A) Excessive violence of the offence
- (B) History of mental illness of the victim
- (C) The use of a weapon during the offence
- (D) The relatively young age of the offender

4 Judy is 8 years old. Judy with two of her friends are caught stealing a truck.
Why can't Judy be charged with this offence?

- (A) Aggravating factors will prevent her being charged
- (B) The concept of *doli incapax* applies
- (C) Judicial discretion will prevent her being charged
- (D) Mitigating factors, such as peer pressure, will prevent her being charged

- 5 Which of the following is NOT a purpose of punishment?
- (A) Incapacitation
 - (B) Recidivism
 - (C) Deterrence
 - (D) Rehabilitation
- 6 When can the prosecution appeal to a higher court?
- (A) The prosecution loses the case
 - (B) The defendant has committed further offences
 - (C) The prosecution believes the sentence is manifestly inadequate
 - (D) The defendant commits perjury while on the witness stand
- 7 Which of the following characteristics illustrates that human rights are an automatic entitlement for all?
- (A) Universal
 - (B) Inherent
 - (C) Indivisible
 - (D) Inalienable
- 8 Which of the following legal concepts places the greatest restriction on judicial discretion in sentencing?
- (A) Judicial guidelines
 - (B) Statutory guidelines
 - (C) Purpose of punishment
 - (D) Victim impact statements
- 9 Which of the following is an alternative method of sentencing?
- (A) Fine
 - (B) Imprisonment
 - (C) Intensive correction order
 - (D) Circle sentencing

- 10** What is the role of the jury in a criminal trial?
- (A) Determine the sentence of an accused
 - (B) Listen to the case and determine if an appeal can occur
 - (C) Determine what evidence is presented during the trial
 - (D) Listen to the case and determine verdict
- 11** Which of the following is an intergovernmental organisation that promotes and protects human rights?
- (A) Commonwealth of Nations
 - (B) Amnesty International
 - (C) Redfern Legal Centre
 - (D) BBC News
- 12** Which of the following organisations is most capable of prosecuting individuals accused of serious breaches of human rights?
- (A) United Nations Security Council
 - (B) International Criminal Court
 - (C) International Court of Justice
 - (D) North Atlantic Treaty Organisation
- 13** Which of the following is a statutory authority that assists individuals with human rights violations?
- (A) The Supreme Court of NSW
 - (B) The International Criminal Court
 - (C) The Australian Human Rights Commission
 - (D) The International Committee of the Red Cross

- 14** What is the purpose of charge negotiation?
- (A) To involve the victim in determining the outcome
 - (B) To provide training in negotiation for the police
 - (C) To ensure that justice is achieved
 - (D) To reduce costs and delays in the court system
- 15** Statement 1: In NSW, an accused person has the right to silence.
Statement 2: Human trafficking is a transnational crime.
- (A) Statement 1 is true and statement 2 is false
 - (B) Statement 1 is false and statement 2 is true
 - (C) Both statements are true
 - (D) Both statements are false
- 16** What is the process by which one country apprehends and sends a person to another country for the purpose of criminal prosecution?
- (A) Parole
 - (B) Extradition
 - (C) Rendition
 - (D) Deportation
- 17** What is the process used with juvenile offenders that involves a conference attended by the offender, the victim and other supporting members of society?
- (A) Circle sentencing
 - (B) Community reinvestment
 - (C) Plea bargaining
 - (D) Restorative justice

- 18** Which group of rights has the International Covenant on Economic, Social and Cultural Rights contributed to?
- (A) Maternity leave, right to work, right to form trade unions
 - (B) Freedom, Right to name and nationality
 - (C) Right to speech, freedom from torture, fair hearing
 - (D) Right to self-determination, right to life, freedom
- 19** NSW and Commonwealth law allows a suspected terrorist to be instructed to wear a tracking device if there is a genuine threat of a terrorist act.
What is such an order called?
- (A) A Control Order
 - (B) Continued Detention
 - (C) Preventative Detention
 - (D) A Community Priority Order
- 20** Which institution has the discretionary role to determine the early release of a prisoner before completing their full sentence?
- (A) Parole Board
 - (B) Sentencing Council
 - (C) Court of Criminal Appeal
 - (D) Department of Public Prosecution

Legal Studies

Section II

Allow about 1 hour for this section

Part A – Human Rights

15 marks

Attempt Questions 21-23

Answer the questions in the spaces provided. Extra page provided on page 12. These spaces provide guidance for the expected length of the response.

Question 21 (3 marks)

Outline how ONE non-legal measure has helped promote the notion of human rights.

3

.....

.....

.....

.....

.....

.....

.....

.....

Question 22 (4 marks)

Examine the role of the Australian constitution in responding to the need to protect human rights.

4

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

.....

Student number/ name: _____

Blank page

Use this extra page for Section II responses.

Student name: _____

Do NOT write in this area.

Legal Studies

Section II (Continued)

Part B - Crime

15 marks

Attempt Question 24

Answer the question in a writing booklet. Extra writing booklets are available.

In your answer you will be assessed on how well you:

- Demonstrate knowledge and understanding of legal issues relevant to the question
 - Communicate using relevant legal terminology and concepts
 - Refer to relevant examples such as legislation, cases, media, international instruments and documents
 - Present a sustained, logical and cohesive response
-

Question 24 (15 marks)

To what extent do criminal processes and institutions address issues of compliance and non-compliance?

Legal Studies

Section III - Options

50 marks

Attempt TWO questions from Question 25-31, each from a different Option.

Allow 1 hour and 30 minutes for this section.

Answer the question in a SEPARATE writing booklet. Extra writing booklets are available.

In your answer you will be assessed on how well you:

- Demonstrate knowledge and understanding of legal issues relevant to the question
 - Communicate using relevant legal terminology and concepts
 - Refer to relevant examples such as legislation, cases, media, international instruments and documents
 - Present a sustained, logical and cohesive response.
-

Question 25 – Consumers (25 marks)

- (a) To what extent does the evolving nature of consumer law impact on the achievement of justice?

OR

- (b) Assess the effect of changing values and ethical standards on the legal protection of consumers.

Question 26 – Global Environmental Protection (25 marks)

- (a) To what extent does the changing nature of global environmental protection impact on the achievement of justice?

OR

- (b) Assess the effect of changing values and ethical standards in ensuring global environmental protection.

Question 27 - Family (25 marks)

- (a) To what extent does family law ensure that the legal rights and obligations of parents and children are met?

OR

- (b) “Family violence... is a serious abuse of human rights... and must continue to be addressed as an absolute priority, by both our Federal and State Governments.”

2015 Australian of the Year Rosie Batty during her valedictory speech at the Australian of the Year Awards 25/1/2016

Evaluate the effectiveness of the law in achieving justice for family members in relation to domestic violence.

Question 28 – Indigenous peoples (25 marks)

- (a) To what extent does the changing nature of the law in relation to Indigenous people’s impact on the achievement of justice?

OR

- (b) Assess the effect of changing values and ethical standards on the legal protection of Indigenous peoples.

Question 29 - Shelter (25 marks)

- (a) To what extent does the changing nature of the law in relation to shelter impact on the achievement of justice?

OR

- (b) Assess the effect of changing values and ethical standards in protecting those securing shelter.

Question 30 – Workplace (25 marks)

- (a) To what extent does the law achieve justice for workers by protecting and recognising workplace rights? Refer to TWO contemporary issues in your response.

OR

- (b) “We worked like slaves and no-one cared.”

Source: 7-Eleven worker, SMH 23/12/17

Assess the effectiveness of workplace laws in dealing with issues of non-compliance.

Question 31 – World Order (25 marks)

- (a) “The ICC is not putting Africa on trial. The ICC is fighting impunity and individuals who are accused of crimes.”

Source: Kofi Annan, cited by Smith, D (2013) ‘Kofi Annan: African justice is weak’ The Guardian 11 Oct

Assess the effectiveness of courts and tribunals in promoting and maintaining world order.

OR

- (b) Evaluate the impact of changing values and ethical standards on world order.

Student number/ name: _____

Blank page

2018 HAHS Trial HSC Legal Studies**Multiple Choice Answer Sheet**

Attempt all questions.

Question				
1	A	B	C	D
2	A	B	C	D
3	A	B	C	D
4	A	B	C	D
5	A	B	C	D
6	A	B	C	D
7	A	B	C	D
8	A	B	C	D
9	A	B	C	D
10	A	B	C	D
11	A	B	C	D
12	A	B	C	D
13	A	B	C	D
14	A	B	C	D
15	A	B	C	D
16	A	B	C	D
17	A	B	C	D
18	A	B	C	D
19	A	B	C	D
20	A	B	C	D

Section 1: Multiple choice

1A	2C	3D	4B	5B	6C	7A	8B	9D	10D
11A	12B	13C	14D	15C	16B	17D	18A	19C	20A

Section 2:**Question 21** (3 marks)

Outline how ONE non-legal measure has helped promote the notion of human rights.

Criteria	Marks
Correctly identifies a non-legal measure and provides a clear and accurate description of how a non-legal measure helps promote human rights	3
Correctly identifies a non-legal measure and provides a limited description of how a non-legal measure helps promote human rights	2
Correctly identifies a non-legal measure or provides a limited description of how a non-legal measure helps promote human rights	1

Answers could include:

- Media
- NGO's (amnesty, red cross)

Question 22 (4 marks)

Examine the role of the Australian constitution in responding to the need to protect human rights.

Criteria	Marks
Clearly and accurately describes the role and impact of the Australian constitution in responding to the need to protect human rights	4-5
Attempts to describe the role and impact of the Australian constitution in responding to the need to protect human rights	2-3
Limited description of the role of the Australian constitution in responding to the need to protect human rights	1-2

Answers could include:

- Division of powers
- Separation of powers
- Limited rights protected and examples (vote, religious freedom, movement, property, trial by jury for indictable offences)
- Positives and negatives of the difficulty of changing rights protected within the constitution

Question 23 (8 marks)

Evaluate the effectiveness of non-government organisations and the media in promoting and enforcing human rights.

Criteria	Marks
• Demonstrates an extensive understanding of the promotion and enforcement of human rights • Makes an informed judgement about the effectiveness of non-government organisations and the media in promoting and enforcing human rights.	8
• Demonstrates a thorough understanding of the promotion and enforcement of human rights • Makes a judgement about the effectiveness of non-government organisations and the media in promoting and enforcing human rights.	6-7
• Demonstrates a sound understanding of the promotion and enforcement of human rights • Attempts a judgement about the effectiveness of non-government organisations • and/or the media in promoting and/or enforcing human rights.	4-5
• Demonstrates some understanding of the promotion and/or enforcement of human rights • Makes statements about human rights and non-government organisations and/or the media	2-3
• Writes in general terms about human rights and/or non-government organisations and/or the media	1

Answers could include:

- The roles of NGOs in promoting and enforcing human rights by working independently of governments to articulate and expose human rights abuses and make recommendations for responses
- Examples of NGOs would include Red Cross, Amnesty International, Human Rights Watch
- Media can be used as a means for governments, IGOs and NGOs to disseminate and promote points of view in regards to human rights. This can be a positive when used as a means to expose human rights abuses and embarrass governments into action, as well as raising awareness in regards to human rights issues to promote action. However, human rights can be hindered by the media when they are controlled by the government through censorship or banning reports, thereby covering up human rights abuses.

Section II

Part B – Crime

To what extent do criminal processes and institutions address issues of compliance and non-compliance?

Question 24

Criteria	Marks
• Demonstrates an extensive knowledge of criminal processes and institutions • Makes an informed judgement about the extent to which criminal processes and institutions address issues of compliance and non-compliance • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive answer to the question using relevant legal terminology and concepts	13-15
• Demonstrates substantial knowledge of criminal processes and institutions • Makes a judgement about the extent to which criminal processes and institutions address issues of compliance and non-compliance • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive answer to the question using relevant legal terminology and concepts	10-12
• Demonstrates some knowledge of criminal processes and institutions • Attempts to make a judgement about the extent to which criminal processes and institutions address issues of compliance and non-compliance • Makes reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	7-9
• Demonstrates limited knowledge of criminal processes and institutions • Makes general statements about the criminal processes and institutions • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	4-6
• Writes in general terms about criminal processes and institutions • May include reference to legislation, cases, media, international instruments and documents • Uses legal terminology	1-3

Answers could include:

- The Criminal Investigation Process – police powers, reporting crime, investigating crime, arrest and charge, summons and warrants, bail or remand, detention and interrogation
- Criminal Trial Process – court jurisdiction, pleas, charge negotiation, use of evidence, defences to criminal charges, role of juries

Section 3: Depth Options

Question 27- Family (25 marks)

(a) To what extent does family law ensure that the legal rights and obligations of parents and children are met?

Criteria	Marks
• Demonstrates extensive knowledge of family law in relation to parents and children • Makes an informed judgement, using criteria, about the extent to which family law ensures that the legal rights and obligations of parents and children are met • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge of family law in relation to parents and children • Makes a sound judgement, using explicit or implicit criteria, about the extent to which family law ensures that the legal rights and obligations of parents and children are met • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge of family law in relation to parents and children • Makes some judgement about the extent to which family law ensures that the legal rights and obligations of parents and/or children are met • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge of family law in relation to parents and children • Makes general statements about family law and/or the legal rights and obligations of parents and/or children • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about family law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5

- (b) Evaluate the effectiveness of the law in achieving justice for family members in relation to domestic violence.

Criteria	Marks
• Demonstrates extensive knowledge of family law in relation to domestic violence • Makes an informed judgement, using criteria, about the effectiveness of the law in achieving justice for family members in relation to domestic violence • Integrates the quote relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge of family law in relation to domestic violence • Makes a sound judgement, using explicit or implicit criteria, about the effectiveness of the law in achieving justice for family members in relation to domestic violence • Uses the quote and relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge of family law in relation to domestic violence • Makes some judgement about the effectiveness of the law in achieving justice for family members in relation to domestic violence • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge of law in relation to domestic violence • Makes general statements about the effectiveness of the law in relation to domestic violence • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about family law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5

Question 30 Workplace (25 marks)

(a) To what extent does the law achieve justice for workers by protecting and recognising workplace rights? Refer to TWO contemporary issues in your response.

Criteria	Marks
• Demonstrates extensive knowledge of workplace law • Makes an informed judgement, using criteria, about the extent to which the law achieves justice for workers by protecting and recognising workplace rights • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge of workplace law • Makes a sound judgement, using explicit or implicit criteria, about the extent to which the law achieves justice for workers by protecting and recognising workplace rights • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge of workplace law • Makes some judgement about the extent to which the law achieves justice for workers by protecting and recognising workplace rights • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge of workplace law • Makes general statements about the extent to which the law achieves justice for workers • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about workplace law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5

(b) Assess the effectiveness of workplace laws in dealing with issues of non-compliance.

Criteria	Marks
• Demonstrates extensive knowledge of workplace law • Makes an informed judgement, using criteria, about the effectiveness of workplace laws in dealing with issues of non-compliance • Integrates the quote relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge of workplace law • Makes a sound judgement, using explicit or implicit criteria, about the effectiveness of workplace laws in dealing with issues of non-compliance • Uses the quote and relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge of workplace law • Makes some judgement about the effectiveness of workplace laws in dealing with issues of non-compliance • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge of workplace law • Makes general statements about workplace laws and/or issues of non-compliance • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about workplace law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5

Question 31 World Order (25 marks)

(a) Assess the effectiveness of courts and tribunals in promoting and maintaining world order.

Criteria	Marks
• Demonstrates extensive knowledge of courts and tribunals in promoting and maintaining world order • Makes an informed judgement, using criteria, about the effectiveness of courts and tribunals in promoting and maintaining world order • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge of courts and tribunals in promoting and maintaining world order • Makes a sound judgement, using explicit or implicit criteria, about the effectiveness of courts and tribunals in promoting and maintaining world order • Uses the quote and relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge of courts and tribunals in relation to world order • Makes some judgement about the effectiveness of courts and tribunals in promoting and/or maintaining world order • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge of courts and tribunals in relation to world order • Makes general statements about courts and tribunals • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about world order • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5

(b) Evaluate the impact of changing values and ethical standards on world order.

Criteria	Marks
• Demonstrates extensive knowledge about world order relating to changing values and ethical standards • Makes an informed judgement, based on criteria, about the impact of changing values and ethical standards on world order • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21-25
• Demonstrates substantial knowledge about world order relating to changing values and ethical standards • Makes a sound judgement, using explicitly or implicitly criteria, about the impact of changing values and ethical standards on world order • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16-20
• Demonstrates some knowledge about world order relating to changing values and/or ethical standards • Makes some judgement about the impact of changing values and ethical standards on world order • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11-15
• Demonstrates limited knowledge about world order relating to changing values and/or ethical standards • Makes a general statement about the impact of changing values and/or ethical standards on world order • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6-10
• Writes in general terms about the laws concerning world order • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1-5